

MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE AND
LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

1. **Parties.** The Memorandum of Understanding (“MOU”) is made and entered into by and between Laramie County School District Number One (“District”), whose address is 2810 House Avenue, Cheyenne, WY 82001, and the City of Cheyenne, a municipality organized and existing under the laws of the state of Wyoming, acting through its Community Recreation and Events Division (“City”), whose address is 2101 O’Neil Avenue, Room 302, Cheyenne, WY 82001.
2. **Purpose.** The purpose of the MOU is to provide Civic Center usage to Laramie County School District Number One Music Department. The city agrees to provide, up to three (3) free one day events not to exceed three thousand dollars (\$3,000.00) per event. Any cost over the three thousand dollars (\$3,000.00) per event will be paid by the District.
3. **Terms.** The MOU shall commence on March 1, 2022 and shall remain in full force and effect through March 31, 2027.
4. **Civic Center Use and Scheduling.** The District, through the office of the Fine Arts Coordinator, will schedule the three music events with the civic center designee according to the scheduling and contract procedures put in place by the City. The District will abide by all Civic Center policies put in place at the time of use. The District will provide the City with a liability insurance certificate.
5. **General Provisions.**
 - A. **Amendments.** Either party may request changes in this MOU. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by and between parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.
 - B. **Applicable Law.** The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of the MOU and over the parties, and the venue shall be First Judicial District, Laramie County, Wyoming.
 - C. **Assignments.** This MOU shall be binding upon and inure to the benefit of the parties hereto and their respective heirs, successors, transferees, and permitted assignees. Neither party shall assign this MOU without the express written consent of the other.

- D. Availability of Funds. Each payment obligation of either party is conditioned upon the availability of government funds, which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, either party may terminate the MOU at the end of the period for which the funds are available. Each party shall notify the other party at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to either party in the event this provision is exercised, and neither party shall be obligated or liable for any future payments due for any damages as a result of termination under this section. This provision shall not be construed to permit either party to terminate this MOU in order to acquire similar services from another party.
- E. Entirety of Agreement. This MOU, consisting of three (3) pages, represent the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- F. Force Majeure. The performance of the MOU by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies, curtailment of transportation facilities, or other similar occurrence or similar ones prevent, dissuade, or unreasonably delay the performance required by the MOU. The MOU may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice of the other party.
- G. Notices. All notices arising out of or from the provisions of this MOU shall be in writing and given to the parties either by regular mail or delivery in person.
- H. Prior Approval. This MOU shall not be binding upon either party unless this MOU has been reduced to writing before performance begins.
- I. Governmental Immunity. The City of Cheyenne and Laramie County School District Number One do not waive their governmental immunity by entering this MOU, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.
- J. Indemnity. Each party to this agreement shall be responsible for any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.

K. Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and the MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to the MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties to this MOU intend and expressly agree that only parties' signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of the MOU.

6. Signatures. In witness whereof, the parties to this MOU through their duly authorized representatives have executed the MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of the MOU as set forth herein.

LARAMIE COUNTY SCHOOL DISTRICT NUMBER ONE

Date

Rose Ann Million Rinne
Chairman, Board of Trustees

CITY OF CHEYENNE

Date

Patrick Collins
Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk